or obstinacy: and then he was to be utterly cut off as a rebel and a destroyer of the commandment of the Law [*Cf. Num. 15:30,31].

Accordingly we must say that, in appointing the punishment for theft, the Law considered what would be likely to happen most frequently (Ex. 22:1-9): wherefore, as regards theft of other things which can easily be safeguarded from a thief, the thief restored only twice their value. But sheep cannot be easily safeguarded from a thief, because they graze in the fields: wherefore it happened more frequently that sheep were stolen in the fields. Consequently the Law inflicted a heavier penalty, by ordering four sheep to be restored for the theft of one. As to cattle, they were yet more difficult to safeguard, because they are kept in the fields, and do not graze in flocks as sheep do; wherefore a yet more heavy penalty was inflicted in their regard, so that five oxen were to be restored for one ox. And this I say, unless perchance the animal itself were discovered in the thief's possession: because in that case he had to restore only twice the number, as in the case of other thefts: for there was reason to presume that he intended to restore the animal, since he kept it alive. Again, we might say, according to a gloss, that "a cow is useful in five ways: it may be used for sacrifice, for ploughing, for food, for milk, and its hide is employed for various purposes": and therefore for one cow five had to be restored. But the sheep was useful in four ways: "for sacrifice, for meat, for milk, and for its wool." The unruly son was slain, not because he ate and drank: but on account of his stubbornness and rebellion, which was always punished by death, as stated above. As to the man who gathered sticks on the sabbath, he was stoned as a breaker of the Law, which commanded the sabbath to be observed, to testify the belief in the newness of the world, as stated above (Q[100], A[5]): wherefore he was slain as an unbeliever.

Reply to Objection 10: The Old Law inflicted the death penalty for the more grievous crimes, viz. for those which are committed against God, and for murder, for stealing a man, irreverence towards one's parents, adultery and incest. In the case of thief of other things it inflicted punishment by indemnification: while in the case of blows and mutilation it authorized punishment by retaliation; and likewise for the sin of bearing false witness. In other faults of less degree it prescribed the punishment of stripes or of public disgrace.

The punishment of slavery was prescribed by the Law in two cases. First, in the case of a slave who was unwilling to avail himself of the privilege granted by the Law, whereby he was free to depart in the seventh year of remission: wherefore he was punished by remaining a slave for ever. Secondly, in the case of a thief, who had not wherewith to make restitution, as stated in Ex. 22:3.

The punishment of absolute exile was not prescribed by the Law: because God was worshipped by that people alone, whereas all other nations were given to idolatry: wherefore if any man were exiled from that people absolutely, he would be in danger of falling into idolatry. For this reason it is related (1 Kings 26:19) that David said to Saul: "They are cursed in the sight of the Lord, who have case me out this day, that I should not dwell in the inheritance of the Lord, saying: Go, serve strange gods." There was, however, a restricted sort of exile: for it is written in Dt. 19:4 [*Cf. Num. 35:25] that "he that striketh [Vulg.: 'killeth'] his neighbor ignorantly, and is proved to have had no hatred against him, shall flee to one of the cities" of refuge and "abide there until the death of the high-priest." For then it became lawful for him to return home, because when the whole people thus suffered a loss they forgot their private quarrels, so that the next of kin of the slain were not so eager to kill the slayer.

Reply to Objection 11: Dumb animals were ordered to be slain, not on account of any fault of theirs; but as a punishment to their owners, who had not safeguarded their beasts from these

offenses. Hence the owner was more severely punished if his ox had butted anyone "yesterday or the day before" (in which case steps might have been taken to butting suddenly). Or again, the animal was slain in detestation of the sin; and lest men should be horrified at the sight thereof.

Reply to Objection 12: The literal reason for this commandment, as Rabbi Moses declares (Doct. Perplex. iii), was because the slayer was frequently from the nearest city: wherefore the slaying of the calf was a means of investigating the hidden murder. This was brought about in three ways. In the first place the elders of the city swore that they had taken every measure for safeguarding the roads. Secondly, the owner of the heifer was indemnified for the slaying of his beast, and if the murder was previously discovered, the beast was not slain. Thirdly, the place, where the heifer was slain, remained uncultivated. Wherefore, in order to avoid this twofold loss, the men of the city would readily make known the murderer, if they knew who he was: and it would seldom happen but that some word or sign would escape about the matter. Or again, this was done in order to frighten people, in detestation of murder. Because the slaying of a heifer, which is a useful animal and full of strength, especially before it has been put under the yoke, signified that whoever committed murder, however useful and strong he might be, was to forfeit his life; and that, by a cruel death, which was implied by the striking off of its head; and that the murderer, as vile and abject, was to be cut off from the fellowship of men, which was betokened by the fact that the heifer after being slain was left to rot in a rough and uncultivated place.

Mystically, the heifer taken from the herd signifies the flesh of Christ; which had not drawn a yoke, since it had done no sin; nor did it plough the ground, i.e. it never knew the stain of revolt. The fact of the heifer being killed in an uncultivated valley signified the despised death of Christ, whereby all sins are washed away, and the devil is shown to be the arch-murderer.

Whether the judicial precepts regarding foreigners were framed in a suitable manner?

Objection 1: It would seem that the judicial precepts regarding foreigners were not suitably framed. For Peter said (Acts 10:34,35): "In very deed I perceive that God is not a respecter of persons, but in every nation, he that feareth Him and worketh justice is acceptable to Him." But those who are acceptable to God should not be excluded from the Church of God. Therefore it is unsuitably commanded (Dt. 23:3) that "the Ammonite and the Moabite, even after the tenth generation, shall not enter into the church of the Lord for ever": whereas, on the other hand, it is prescribed (Dt. 23:7) to be observed with regard to certain other nations: "Thou shalt not abhor the Edomite, because he is thy brother; nor the Egyptian because thou wast a stranger in his land."

Objection 2: Further, we do not deserve to be punished for those things which are not in our power. But it is not in man's power to be an eunuch, or born of a prostitute. Therefore it is unsuitably commanded (Dt. 23:1,2) that "an eunuch and one born of a prostitute shalt not enter into the church of the Lord."

Objection 3: Further, the Old Law mercifully forbade strangers to be molested: for it is written (Ex. 22:21): "Thou shalt not molest a stranger, nor afflict him; for yourselves also were strangers in the land of Egypt": and (Ex. 23:9): "Thou shalt not molest a stranger, for you know the hearts of strangers, for you also were strangers in the land of Egypt." But it is an affliction to be burdened with usury. Therefore the Law unsuitably permitted them (Dt. 23:19,20) to lend money to the stranger for usury.

Objection 4: Further, men are much more akin to us than trees. But we should show greater care and love for these things that are nearest to us, according to Ecclus. 13:19: "Every beast loveth its like: so also every man him that is nearest to himself." Therefore the Lord unsuitably commanded (Dt. 20:13-19) that all the inhabitants of a captured hostile city were to be slain, but that the fruit-trees should not be cut down.

Objection 5: Further, every one should prefer the common good of virtue to the good of the individual. But the common good is sought in a war which men fight against their enemies. Therefore it is unsuitably commanded (Dt. 20:5-7) that certain men should be sent home, for instance a man that had built a new house, or who had planted a vineyard, or who had married a wife.

Objection 6: Further, no man should profit by his own fault. But it is a man's fault if he be timid or faint-hearted: since this is contrary to the virtue of fortitude. Therefore the timid and faint-hearted are unfittingly excused from the toil of battle (Dt. 20:8).

On the contrary, Divine Wisdom declares (Prov. 8:8): "All my words are just, there is nothing wicked nor perverse in them."

I answer that, Man's relations with foreigners are twofold: peaceful, and hostile: and in directing both kinds of relation the Law contained suitable precepts. For the Jews were offered three opportunities of peaceful relations with foreigners. First, when foreigners passed through their land as travelers. Secondly, when they came to dwell in their land as newcomers. And in both these respects the Law made kind provision in its precepts: for it is written (Ex. 22:21): "Thou shalt not molest a stranger [advenam]"; and again (Ex. 22:9): "Thou shalt not molest a stranger [peregrino]." Thirdly, when any foreigners wished to be admitted entirely to their fellowship and mode of worship. With regard to these a certain order was observed. For they were not at once admitted to citizenship: just as it was law with some nations that no one was deemed a citizen except after two or three generations, as the Philosopher says (Polit. iii, 1). The reason for this was that if foreigners were allowed to meddle with the affairs of a nation as soon as they settled down in its midst, many dangers might occur, since the foreigners not yet having the common good firmly at heart might attempt something hurtful to the people. Hence it was that the Law prescribed in respect of certain nations that had close relations with the Jews (viz., the Egyptians among whom they were born and educated, and the Idumeans, the children of Esau, Jacob's brother), that they should be admitted to the fellowship of the people after the third generation; whereas others (with whom their relations had been hostile, such as the Ammonites and Moabites) were never to be admitted to citizenship; while the Amalekites, who were yet more hostile to them, and had no fellowship of kindred with them, were to be held as foes in perpetuity: for it is written (Ex. 17:16): "The war of the Lord shall be against Amalec from generation to generation."

In like manner with regard to hostile relations with foreigners, the Law contained suitable precepts. For, in the first place, it commanded that war should be declared for a just cause: thus it is commanded (Dt. 20:10) that when they advanced to besiege a city, they should at first make an offer of peace. Secondly, it enjoined that when once they had entered on a war they should undauntedly persevere in it, putting their trust in God. And in order that they might be the more heedful of this command, it ordered that on the approach of battle the priest should hearten them by promising them God's aid. Thirdly, it prescribed the removal of whatever might prove an obstacle to the fight, and that certain men, who might be in the way, should be sent home. Fourthly, it enjoined that they should use moderation in pursuing the advantage of victory, by sparing women and children, and by not cutting down fruit-trees of that country.

Reply to Objection 1: The Law excluded the men of no nation from the worship of God and from things pertaining to the welfare of the soul: for it is written (Ex. 12:48): "If any stranger be willing to dwell among you, and to keep the Phase of the Lord; all his males shall first be circumcised, and then shall he celebrate it according to the manner, and he shall be as that which is born in the land." But in temporal matters concerning the public life of the people, admission was not granted to everyone at once, for the reason given above: but to some, i.e. the Egyptians and Idumeans, in the third generation; while others were excluded in perpetuity, in detestation of their past offense, i.e. the peoples of Moab, Ammon, and Amalec. For just as one man is punished for a sin committed by him, in order that others seeing this may be deterred and refrain from sinning; so too may one nation or city be punished for a crime, that others may refrain from similar crimes.

Nevertheless it was possible by dispensation for a man to be admitted to citizenship on account of some act of virtue: thus it is related (Judith 14:6) that Achior, the captain of the children of Ammon, "was joined to the people of Israel, with all the succession of his kindred." The same applies to Ruth the Moabite who was "a virtuous woman" (Ruth 3:11): although it may be said that this prohibition regarded men and not women, who are not competent to be citizens absolutely speaking.

Reply to Objection 2: As the Philosopher says (Polit. iii, 3), a man is said to be a citizen in two ways: first, simply; secondly, in a restricted sense. A man is a citizen simply if he has all the rights of citizenship, for instance, the right of debating or voting in the popular assembly. On the other hand, any man may be called citizen, only in a restricted sense, if he dwells within the state, even common people or children or old men, who are not fit to enjoy power in matters pertaining to the common weal. For this reason bastards, by reason of their base origin, were excluded from the "ecclesia," i.e. from the popular assembly, down to the tenth generation. The same applies to eunuchs, who were not competent to receive the honor due to a father, especially among the Jews, where the divine worship was continued through carnal generation: for even among the heathens, those who had many children were marked with special honor, as the Philosopher remarks (Polit. ii, 6). Nevertheless, in matters pertaining to the grace of God, eunuchs were not discriminated from others, as neither were strangers, as already stated: for it is written (Isa. 56:3): "Let not the son of the stranger that adhereth to the Lord speak, saying: The Lord will divide and separate me from His people. And let not the eunuch say: Behold I am a dry tree."

Reply to Objection 3: It was not the intention of the Law to sanction the acceptance of usury from strangers, but only to tolerate it on account of the proneness of the Jews to avarice; and in order to promote an amicable feeling towards those out of whom they made a profit.

Reply to Objection 4: A distinction was observed with regard to hostile cities. For some of them were far distant, and were not among those which had been promised to them. When they had taken these cities, they killed all the men who had fought against God's people; whereas the women and children were spared. But in the neighboring cities which had been promised to them, all were ordered to be slain, on account of their former crimes, to punish which God sent the Israelites as executor of Divine justice: for it is written (Dt. 9:5) "because they have done wickedly, they are destroyed at thy coming in." The fruit-trees were commanded to be left untouched, for the use of the people themselves, to whom the city with its territory was destined to be subjected.

Reply to Objection 5: The builder of a new house, the planter of a vineyard, the newly married husband, were excluded from fighting, for two reasons. First, because man is wont to give all his affection to those things which he has lately acquired, or is on the point of having, and consequently

he is apt to dread the loss of these above other things. Wherefore it was likely enough that on account of this affection they would fear death all the more, and be so much the less brave in battle. Secondly, because, as the Philosopher says (Phys. ii, 5), "it is a misfortune for a man if he is prevented from obtaining something good when it is within his grasp." And so lest the surviving relations should be the more grieved at the death of these men who had not entered into the possession of the good things prepared for them; and also lest the people should be horror-stricken at the sight of their misfortune: these men were taken away from the danger of death by being removed from the battle.

Reply to Objection 6: The timid were sent back home, not that they might be the gainers thereby; but lest the people might be the losers by their presence, since their timidity and flight might cause others to be afraid and run away.

Whether the Old Law set forth suitable precepts about the members of the household?

Objection 1: It would seem that the Old Law set forth unsuitable precepts about the members of the household. For a slave "is in every respect his master's property," as the Philosopher states (Polit. i, 2). But that which is a man's property should be his always. Therefore it was unfitting for the Law to command (Ex. 21:2) that slaves should "go out free" in the seventh year.

Objection 2: Further, a slave is his master's property, just as an animal, e.g. an ass or an ox. But it is commanded (Dt. 22:1-3) with regard to animals, that they should be brought back to the owner if they be found going astray. Therefore it was unsuitably commanded (Dt. 23:15): "Thou shalt not deliver to his master the servant that is fled to thee."

Objection 3: Further, the Divine Law should encourage mercy more even than the human law. But according to human laws those who ill-treat their servants and maidservants are severely punished: and the worse treatment of all seems to be that which results in death. Therefore it is unfittingly commanded (Ex. 21:20,21) that "he that striketh his bondman or bondwoman with a rod, and they die under his hands . . . if the party remain alive a day . . . he shall not be subject to the punishment, because it is his money."

Objection 4: Further, the dominion of a master over his slave differs from that of the father over his son (Polit. i, 3). But the dominion of master over slave gives the former the right to sell his servant or maidservant. Therefore it was unfitting for the Law to allow a man to sell his daughter to be a servant or handmaid (Ex. 21:7).

Objection 5: Further, a father has power over his son. But he who has power over the sinner has the right to punish him for his offenses. Therefore it is unfittingly commanded (Dt. 21:18, seqq.) that a father should bring his son to the ancients of the city for punishment.

Objection 6: Further, the Lord forbade them (Dt. 7:3, seqq.) to make marriages with strange nations; and commanded the dissolution of such as had been contracted (1 Esdras 10). Therefore it was unfitting to allow them to marry captive women from strange nations (Dt. 21:10, seqq.).

Objection 7: Further, the Lord forbade them to marry within certain degrees of consanguinity and affinity, according to Lev. 18. Therefore it was unsuitably commanded (Dt. 25:5) that if any man died without issue, his brother should marry his wife.

Objection 8: Further, as there is the greatest familiarity between man and wife, so should there be the staunchest fidelity. But this is impossible if the marriage bond can be sundered. Therefore

it was unfitting for the Lord to allow (Dt. 24:1-4) a man to put his wife away, by writing a bill of divorce; and besides, that he could not take her again to wife.

Objection 9: Further, just as a wife can be faithless to her husband, so can a slave be to his master, and a son to his father. But the Law did not command any sacrifice to be offered in order to investigate the injury done by a servant to his master, or by a son to his father. Therefore it seems to have been superfluous for the Law to prescribe the "sacrifice of jealousy" in order to investigate a wife's adultery (Num. 5:12, seqq.). Consequently it seems that the Law put forth unsuitable judicial precepts about the members of the household.

On the contrary, It is written (Ps. 18:10): "The judgments of the Lord are true, justified in themselves."

I answer that, The mutual relations of the members of a household regard everyday actions directed to the necessities of life, as the Philosopher states (Polit. i, 1). Now the preservation of man's life may be considered from two points of view. First, from the point of view of the individual, i.e. in so far as man preserves his individuality: and for the purpose of the preservation of life, considered from this standpoint, man has at his service external goods, by means of which he provides himself with food and clothing and other such necessaries of life: in the handling of which he has need of servants. Secondly man's life is preserved from the point of view of the species, by means of generation, for which purpose man needs a wife, that she may bear him children. Accordingly the mutual relations of the members of a household admit of a threefold combination: viz. those of master and servant, those of husband and wife, and those of father and son: and in respect of all these relationships the Old Law contained fitting precepts. Thus, with regard to servants, it commanded them to be treated with moderation---both as to their work, lest, to wit, they should be burdened with excessive labor, wherefore the Lord commanded (Dt. 5:14) that on the Sabbath day "thy manservant and thy maidservant" should "rest even as thyself"---and also as to the infliction of punishment, for it ordered those who maimed their servants, to set them free (Ex. 21:26,27). Similar provision was made in favor of a maidservant when married to anyone (Ex. 21:7, seqq.). Moreover, with regard to those servants in particular who were taken from among the people, the Law prescribed that they should go out free in the seventh year taking whatever they brought with them, even their clothes (Ex. 21:2, seqq.): and furthermore it was commanded (Dt. 15:13) that they should be given provision for the journey.

With regard to wives the Law made certain prescriptions as to those who were to be taken in marriage: for instance, that they should marry a wife from their own tribe (Num. 36:6): and this lest confusion should ensue in the property of various tribes. Also that a man should marry the wife of his deceased brother when the latter died without issue, as prescribed in Dt. 25:5,6: and this in order that he who could not have successors according to carnal origin, might at least have them by a kind of adoption, and that thus the deceased might not be entirely forgotten. It also forbade them to marry certain women; to wit, women of strange nations, through fear of their losing their faith; and those of their near kindred, on account of the natural respect due to them. Furthermore it prescribed in what way wives were to be treated after marriage. To wit, that they should not be slandered without grave reason: wherefore it ordered punishment to be inflicted on the man who falsely accused his wife of a crime (Dt. 22:13, seqq.). Also that a man's hatred of his wife should not be detrimental to his son (Dt. 21:15, seqq.). Again, that a man should not ill-use his wife through hatred of her, but rather that he should write a bill of divorce and send her away (Dt. 24:1).

Furthermore, in order to foster conjugal love from the very outset, it was prescribed that no public duties should be laid on a recently married man, so that he might be free to rejoice with his wife.

With regard to children, the Law commanded parents to educate them by instructing them in the faith: hence it is written (Ex. 12:26, seqq.): "When your children shall say to you: What is the meaning of this service? You shall say to them: It is the victim of the passage of the Lord." Moreover, they are commanded to teach them the rules of right conduct: wherefore it is written (Dt. 21:20) that the parents had to say: "He slighteth hearing our admonitions, he giveth himself to revelling and to debauchery."

Reply to Objection 1: As the children of Israel had been delivered by the Lord from slavery, and for this reason were bound to the service of God, He did not wish them to be slaves in perpetuity. Hence it is written (Lev. 25:39, seqq.): "If thy brother, constrained by poverty, sell himself to thee, thou shalt not oppress him with the service of bondservants: but he shall be as a hireling and a sojourner . . . for they are My servants, and I brought them out of the land of Egypt: let them not be sold as bondmen": and consequently, since they were slaves, not absolutely but in a restricted sense, after a lapse of time they were set free.

Reply to Objection 2: This commandment is to be understood as referring to a servant whom his master seeks to kill, or to help him in committing some sin.

Reply to Objection 3: With regard to the ill-treatment of servants, the Law seems to have taken into consideration whether it was certain or not: since if it were certain, the Law fixed a penalty: for maiming, the penalty was forfeiture of the servant, who was ordered to be given his liberty: while for slaying, the punishment was that of a murderer, when the slave died under the blow of his master. If, however, the hurt was not certain, but only probable, the Law did not impose any penalty as regards a man's own servant: for instance if the servant did not die at once after being struck, but after some days: for it would be uncertain whether he died as a result of the blows he received. For when a man struck a free man, yet so that he did not die at once, but "walked abroad again upon his staff," he that struck him was quit of murder, even though afterwards he died. Nevertheless he was bound to pay the doctor's fees incurred by the victim of his assault. But this was not the case if a man killed his own servant: because whatever the servant had, even his very person, was the property of his master. Hence the reason for his not being subject to a pecuniary penalty is set down as being "because it is his money."

Reply to Objection 4: As stated above (ad 1), no Jew could own a Jew as a slave absolutely: but only in a restricted sense, as a hireling for a fixed time. And in this way the Law permitted that through stress of poverty a man might sell his son or daughter. This is shown by the very words of the Law, where we read: "If any man sell his daughter to be a servant, she shall not go out as bondwomen are wont to go out." Moreover, in this way a man might sell not only his son, but even himself, rather as a hireling than as a slave, according to Lev. 25:39,40: "If thy brother, constrained by poverty, sell himself to thee, thou shalt not oppress him with the service of bondservants: but he shall be as a hireling and a sojourner."

Reply to Objection 5: As the Philosopher says (Ethic. x, 9), the paternal authority has the power only of admonition; but not that of coercion, whereby rebellious and headstrong persons can be compelled. Hence in this case the Lord commanded the stubborn son to be punished by the rulers of the city.

Reply to Objection 6: The Lord forbade them to marry strange women on account of the danger of seduction, lest they should be led astray into idolatry. And specially did this prohibition apply

with respect to those nations who dwelt near them, because it was more probable that they would adopt their religious practices. When, however, the woman was willing to renounce idolatry, and become an adherent of the Law, it was lawful to take her in marriage: as was the case with Ruth whom Booz married. Wherefore she said to her mother-in-law (Ruth 1:16): "Thy people shall be my people, and thy God my God." Accordingly it was not permitted to marry a captive woman unless she first shaved her hair, and pared her nails, and put off the raiment wherein she was taken, and mourned for her father and mother, in token that she renounced idolatry for ever.

Reply to Objection 7: As Chrysostom says (Hom. xlviii super Matth.), "because death was an unmitigated evil for the Jews, who did everything with a view to the present life, it was ordained that children should be born to the dead man through his brother: thus affording a certain mitigation to his death. It was not, however, ordained that any other than his brother or one next of kin should marry the wife of the deceased, because" the offspring of this union "would not be looked upon as that of the deceased: and moreover, a stranger would not be under the obligation to support the household of the deceased, as his brother would be bound to do from motives of justice on account of his relationship." Hence it is evident that in marrying the wife of his dead brother, he took his dead brother's place.

Reply to Objection 8: The Law permitted a wife to be divorced, not as though it were just absolutely speaking, but on account of the Jews' hardness of heart, as Our Lord declared (Mat. 19:8). Of this, however, we must speak more fully in the treatise on Matrimony (SP, Q[67]).

Reply to Objection 9: Wives break their conjugal faith by adultery, both easily, for motives of pleasure, and hiddenly, since "the eye of the adulterer observeth darkness" (Job 24:15). But this does not apply to a son in respect of his father, or to a servant in respect of his master: because the latter infidelity is not the result of the lust of pleasure, but rather of malice: nor can it remain hidden like the infidelity of an adulterous woman.

OF THE LAW OF THE GOSPEL, CALLED THE NEW LAW, CONSIDERED IN ITSELF (FOUR ARTICLES)

In proper sequence we have to consider now the Law of the Gospel which is called the New Law: and in the first place we must consider it in itself; secondly, in comparison with the Old Law; thirdly, we shall treat of those things that are contained in the New Law. Under the first head there are four points of inquiry:

(1) What kind of law is it? i.e. Is it a written law or is it instilled in the heart?

(2) Of its efficacy, i.e. does it justify?

(3) Of its beginning: should it have been given at the beginning of the world?

(4) Of its end: i.e. whether it will last until the end, or will another law take its place?

Whether the New Law is a written law?

Objection 1: It would seem that the New Law is a written law. For the New Law is just the same as the Gospel. But the Gospel is set forth in writing, according to Jn. 20:31: "But these are written that you may believe." Therefore the New Law is a written law.

Objection 2: Further, the law that is instilled in the heart is the natural law, according to Rom. 2:14,15: "(The Gentiles) do by nature those things that are of the law . . . who have [Vulg.: 'show'] the work of the law written in their hearts." If therefore the law of the Gospel were instilled in our hearts, it would not be distinct from the law of nature.

Objection 3: Further, the law of the Gospel is proper to those who are in the state of the New Testament. But the law that is instilled in the heart is common to those who are in the New Testament and to those who are in the Old Testament: for it is written (Wis. 7:27) that Divine Wisdom "through nations conveyeth herself into holy souls, she maketh the friends of God and prophets." Therefore the New Law is not instilled in our hearts.

On the contrary, The New Law is the law of the New Testament. But the law of the New Testament is instilled in our hearts. For the Apostle, quoting the authority of Jeremiah 31:31,33: "Behold the days shall come, saith the Lord; and I will perfect unto the house of Israel, and unto the house of Judah, a new testament," says, explaining what this statement is (Heb. 8:8,10): "For this is the testament which I will make to the house of Israel . . . by giving [Vulg.: 'I will give'] My laws into their mind, and in their heart will I write them." Therefore the New Law is instilled in our hearts.

I answer that, "Each thing appears to be that which preponderates in it," as the Philosopher states (Ethic. ix, 8). Now that which is preponderant in the law of the New Testament, and whereon all its efficacy is based, is the grace of the Holy Ghost, which is given through faith in Christ. Consequently the New Law is chiefly the grace itself of the Holy Ghost, which is given to those who believe in Christ. This is manifestly stated by the Apostle who says (Rom. 3:27): "Where is . . . thy boasting? It is excluded. By what law? Of works? No, but by the law of faith": for he calls the grace itself of faith "a law." And still more clearly it is written (Rom. 8:2): "The law of the spirit of life, in Christ Jesus, hath delivered me from the law of sin and of death." Hence Augustine says (De Spir. et Lit. xxiv) that "as the law of deeds was written on tables of stone, so is the law of faith inscribed on the hearts of the faithful": and elsewhere, in the same book (xxi): "What else are the Divine laws written by God Himself on our hearts, but the very presence of His Holy Spirit?"

Nevertheless the New Law contains certain things that dispose us to receive the grace of the Holy Ghost, and pertaining to the use of that grace: such things are of secondary importance, so to speak, in the New Law; and the faithful need to be instructed concerning them, both by word and writing, both as to what they should believe and as to what they should do. Consequently we must say that the New Law is in the first place a law that is inscribed on our hearts, but that secondarily it is a written law.

Reply to Objection 1: The Gospel writings contain only such things as pertain to the grace of the Holy Ghost, either by disposing us thereto, or by directing us to the use thereof. Thus with regard to the intellect, the Gospel contains certain matters pertaining to the manifestation of Christ's Godhead or humanity, which dispose us by means of faith through which we receive the grace of the Holy Ghost: and with regard to the affections, it contains matters touching the contempt of the world, whereby man is rendered fit to receive the grace of the Holy Ghost: for "the world," i.e. worldly men, "cannot receive" the Holy Ghost (Jn. 14:17). As to the use of spiritual grace, this consists in works of virtue to which the writings of the New Testament exhort men in divers ways.

Reply to Objection 2: There are two ways in which a thing may be instilled into man. First, through being part of his nature, and thus the natural law is instilled into man. Secondly, a thing is instilled into man by being, as it were, added on to his nature by a gift of grace. In this way the

New Law is instilled into man, not only by indicating to him what he should do, but also by helping him to accomplish it.

Reply to Objection 3: No man ever had the grace of the Holy Ghost except through faith in Christ either explicit or implicit: and by faith in Christ man belongs to the New Testament. Consequently whoever had the law of grace instilled into them belonged to the New Testament.

Whether the New Law justifies?

Objection 1: It would seem that the New Law does not justify. For no man is justified unless he obeys God's law, according to Heb. 5:9: "He," i.e. Christ, "became to all that obey Him the cause of eternal salvation." But the Gospel does not always cause men to believe in it: for it is written (Rom. 10:16): "All do not obey the Gospel." Therefore the New Law does not justify.

Objection 2: Further, the Apostle proves in his epistle to the Romans that the Old Law did not justify, because transgression increased at its advent: for it is stated (Rom. 4:15): "The Law worketh wrath: for where there is no law, neither is there transgression." But much more did the New Law increase transgression: since he who sins after the giving of the New Law deserves greater punishment, according to Heb. 10:28,29: "A man making void the Law of Moses dieth without any mercy under two or three witnesses. How much more, do you think, he deserveth worse punishments, who hath trodden underfoot the Son of God," etc.? Therefore the New Law, like the Old Law, does not justify.

Objection 3: Further, justification is an effect proper to God, according to Rom. 8:33: "God that justifieth." But the Old Law was from God just as the New Law. Therefore the New Law does not justify any more than the Old Law.

On the contrary, The Apostle says (Rom. 1:16): "I am not ashamed of the Gospel: for it is in the power of God unto salvation to everyone that believeth." But there is no salvation but to those who are justified. Therefore the Law of the Gospel justifies.

I answer that, As stated above (A[1]), there is a twofold element in the Law of the Gospel. There is the chief element, viz. the grace of the Holy Ghost bestowed inwardly. And as to this, the New Law justifies. Hence Augustine says (De Spir. et Lit. xvii): "There," i.e. in the Old Testament, "the Law was set forth in an outward fashion, that the ungodly might be afraid"; "here," i.e. in the New Testament, "it is given in an inward manner, that they may be justified." The other element of the Evangelical Law is secondary: namely, the teachings of faith, and those commandments which direct human affections and human actions. And as to this, the New Law does not justify. Hence the Apostle says (2 Cor. 3:6) "The letter killeth, but the spirit quickeneth": and Augustine explains this (De Spir. et Lit. xiv, xvii) by saying that the letter denotes any writing external to man, even that of the moral precepts such as are contained in the Gospel. Wherefore the letter, even of the Gospel would kill, unless there were the inward presence of the healing grace of faith.

Reply to Objection 1: This argument holds true of the New Law, not as to its principal, but as to its secondary element: i.e. as to the dogmas and precepts outwardly put before man either in words or in writing.

Reply to Objection 2: Although the grace of the New Testament helps man to avoid sin, yet it does not so confirm man in good that he cannot sin: for this belongs to the state of glory. Hence if a man sin after receiving the grace of the New Testament, he deserves greater punishment, as

being ungrateful for greater benefits, and as not using the help given to him. And this is why the New Law is not said to "work wrath": because as far as it is concerned it gives man sufficient help to avoid sin.

Reply to Objection 3: The same God gave both the New and the Old Law, but in different ways. For He gave the Old Law written on tables of stone: whereas He gave the New Law written "in the fleshly tables of the heart," as the Apostle expresses it (2 Cor. 3:3). Wherefore, as Augustine says (De Spir. et Lit. xviii), "the Apostle calls this letter which is written outside man, a ministration of death and a ministration of condemnation: whereas he calls the other letter, i.e. the Law of the New Testament, the ministration of the spirit and the ministration of justice: because through the gift of the Spirit we work justice, and are delivered from the condemnation due to transgression."

Whether the New Law should have been given from the beginning of the world?

Objection 1: It would seem that the New Law should have been given from the beginning of the world. "For there is no respect of persons with God" (Rom. 2:11). But "all" men "have sinned and do need the glory of God" (Rom. 3:23). Therefore the Law of the Gospel should have been given from the beginning of the world, in order that it might bring succor to all.

Objection 2: Further, as men dwell in various places, so do they live in various times. But God, "Who will have all men to be saved" (1 Tim. 2:4), commanded the Gospel to be preached in all places, as may be seen in the last chapters of Matthew and Mark. Therefore the Law of the Gospel should have been at hand for all times, so as to be given from the beginning of the world.

Objection 3: Further, man needs to save his soul, which is for all eternity, more than to save his body, which is a temporal matter. But God provided man from the beginning of the world with things that are necessary for the health of his body, by subjecting to his power whatever was created for the sake of man (Gn. 1:26-29). Therefore the New Law also, which is very necessary for the health of the soul, should have been given to man from the beginning of the world.

On the contrary, The Apostle says (1 Cor. 15:46): "That was not first which is spiritual, but that which is natural." But the New Law is highly spiritual. Therefore it was not fitting for it to be given from the beginning of the world.

I answer that, Three reasons may be assigned why it was not fitting for the New Law to be given from the beginning of the world. The first is because the New Law, as stated above (A[1]), consists chiefly in the grace of the Holy Ghost: which it behoved not to be given abundantly until sin, which is an obstacle to grace, had been cast out of man through the accomplishment of his redemption by Christ: wherefore it is written (Jn. 7:39): "As yet the Spirit was not given, because Jesus was not yet glorified." This reason the Apostle states clearly (Rom. 8:2, seqq.) where, after speaking of "the Law of the Spirit of life," he adds: "God sending His own Son, in the likeness of sinful flesh, of sin* hath condemned sin in the flesh, that the justification of the Law might be fulfilled in us." [*St. Thomas, quoting perhaps from memory, omits the "et" (and), after "sinful flesh." The text quoted should read thus: "in the likeness of sinful flesh, and a sin offering ({peri hamartias}), hath," etc.]

A second reason may be taken from the perfection of the New Law. Because a thing is not brought to perfection at once from the outset, but through an orderly succession of time; thus one is at first a boy, and then a man. And this reason is stated by the Apostle (Gal. 3:24,25): "The Law

was our pedagogue in Christ that we might be justified by faith. But after the faith is come, we are no longer under a pedagogue."

The third reason is found in the fact that the New Law is the law of grace: wherefore it behoved man first of all to be left to himself under the state of the Old Law, so that through falling into sin, he might realize his weakness, and acknowledge his need of grace. This reason is set down by the Apostle (Rom. 5:20): "The Law entered in, that sin might abound: and when sin abounded grace did more abound."

Reply to Objection 1: Mankind on account of the sin of our first parents deserved to be deprived of the aid of grace: and so "from whom it is withheld it is justly withheld, and to whom it is given, it is mercifully given," as Augustine states (De Perfect. Justit. iv) [*Cf. Ep. ccvii; De Pecc. Mer. et Rem. ii, 19]. Consequently it does not follow that there is respect of persons with God, from the fact that He did not offer the Law of grace to all from the beginning of the world, which Law was to be published in due course of time, as stated above.

Reply to Objection 2: The state of mankind does not vary according to diversity of place, but according to succession of time. Hence the New Law avails for all places, but not for all times: although at all times there have been some persons belonging to the New Testament, as stated above (A[1], ad 3).

Reply to Objection 3: Things pertaining to the health of the body are of service to man as regards his nature, which sin does not destroy: whereas things pertaining to the health of the soul are ordained to grace, which is forfeit through sin. Consequently the comparison will not hold.

Whether the New Law will last till the end of the world?

Objection 1: It would seem that the New Law will not last until the end of the world. Because, as the Apostle says (1 Cor. 13:10), "when that which is perfect is come, that which is in part shall be done away." But the New Law is "in part," since the Apostle says (1 Cor. 13:9): "We know in part and we prophesy in part." Therefore the New Law is to be done away, and will be succeeded by a more perfect state.

Objection 2: Further, Our Lord (Jn. 16:13) promised His disciples the knowledge of all truth when the Holy Ghost, the Comforter, should come. But the Church knows not yet all truth in the state of the New Testament. Therefore we must look forward to another state, wherein all truth will be revealed by the Holy Ghost.

Objection 3: Further, just as the Father is distinct from the Son and the Son from the Father, so is the Holy Ghost distinct from the Father and the Son. But there was a state corresponding with the Person of the Father, viz. the state of the Old Law, wherein men were intent on begetting children: and likewise there is a state corresponding to the Person of the Son: viz. the state of the New Law, wherein the clergy who are intent on wisdom (which is appropriated to the Son) hold a prominent place. Therefore there will be a third state corresponding to the Holy Ghost, wherein spiritual men will hold the first place.

Objection 4: Further, Our Lord said (Mat. 24:14): "This Gospel of the kingdom shall be preached in the whole world . . . and then shall the consummation come." But the Gospel of Christ is already preached throughout the whole world: and yet the consummation has not yet come. Therefore the